Ch. 3: Institutions and Governance of the European Union.



Rembrandt van Rijn: The Nightwatch 1642.

Institutions and Governance of the EU:

The Institutions.

European Council (Summit)

European Parliament

Council of Ministers (Council of the EU)

European Commission

Court of Justice

Court of Auditors

European Central Bank

European Investment Bank

46 Agencies

Total staff of the European institutions: 65.000

Source: European Commission

Main Institutions and Leaders of the EU.



The European Parliament - voice of the people.

Roberta Metsola (Malta, EPP),

President of the European Parliament 2024-2027



The European Council – voice of the Member States.

Antonio Costa (PO, SD),
Council President 2024-2027



Kaja Kallas (EST, Liberal),

High Representative for Common
Foreign and Security Policy 2024-2029

The European Commission – management of the Union.



Ursula von der Leyen (DE, EPP),
President of the European Commission 2024-2029

Selection of Lead Team: Difficult balance between Member States (big/small, North/South) and political parties (EPP, SD, Liberals).

The European Council.

- Meeting of Heads of State and Government (i.e. Presidents or Prime Ministers) of all the EU countries, plus the President of the European Council and the President of the Commission („European Summits“).
- President of the European Council is elected by its members and serves for a term of 2 1/2 years.



Justus Lipsius Building Brussels.

- Highest-level policy-making body in the EU.
- Austria represented by the Federal Chancellor Christian Stocker.
- The European Council decides exclusively on matters of the Common Foreign and Security Policy (CFSP).

➢ **Note:**
The European Council (Europäischer Rat) is different from the Council of Europe (Europarat).

The European Council Meetings.



- Regular meetings 4 times per year in Brussels headquarter, plus ad-hoc meetings when necessary.
- These meetings – also called „European Summits“ - are chaired by the President of the European Council.

The European Council Meetings.



Meeting of the European Council on 17-18 March 2016 in Brussels on relations EU-Turkey chaired by Council President Donald Tusk: Decision to propose an agreement to Turkey to block illegal migration and in exchange provide financial aid to Turkey and accelerate the accession process.

The Council of Ministers (Council of the European Union).

- Government ministers from all the EU countries meeting regularly to take detailed decisions and to pass EU laws on Community matters.
- 10 different configurations (period 2025-2029):
  - General Affairs
  - Foreign Affairs
  - Economic and Financial Affairs
  - Agriculture and Fisheries
  - Environment and Climate
  - Justice and Home Affairs
  - Employment, Social Policies, Health and Consumer Affairs
  - Competitiveness
  - Transport, Telecommunications and Energy
  - Education, Youth, Culture and Sport
- Every Council meeting is attended by one minister from each EU country.
- Which ministers attend a meeting depends on the topic of the agenda.

The Council of Ministers.

- Council Presidency is executed by a Member State - rotating every six months. Now Ireland.
- Relevant minister of Presidency country chairs these meetings.
- *In praxi* the EU's main decision-making body as it has legislative power, which it shares with the European Parliament under the „co-decision procedure", including adopting the EU budget.
- Depending on the subject the Council has to take its decisions either by
  - simple or „qualified majority" vote *(all community matters),* or
  - unanimously *(Common Foreign and Security Policy)*.
- Simple majority:
  - 14 member states in favor.
- „Qualified majority":
  - 55% of the member states (14) representing at least 65% of the population of the EU .
- Every country has been assigned a certain number of the in total 345 votes roughly representing the size of the population.
- Council Meetings are open to the public.

The European Parliament (EP).

- 720 members elected for 5 years representing the EU's citizens.
- Number of seats in the EP per country roughly proportional to its population but with a higher number for the smaller countries, e.g. Austria 19, Germany 99 and the smallest states with 6 members.
- Major tasks:

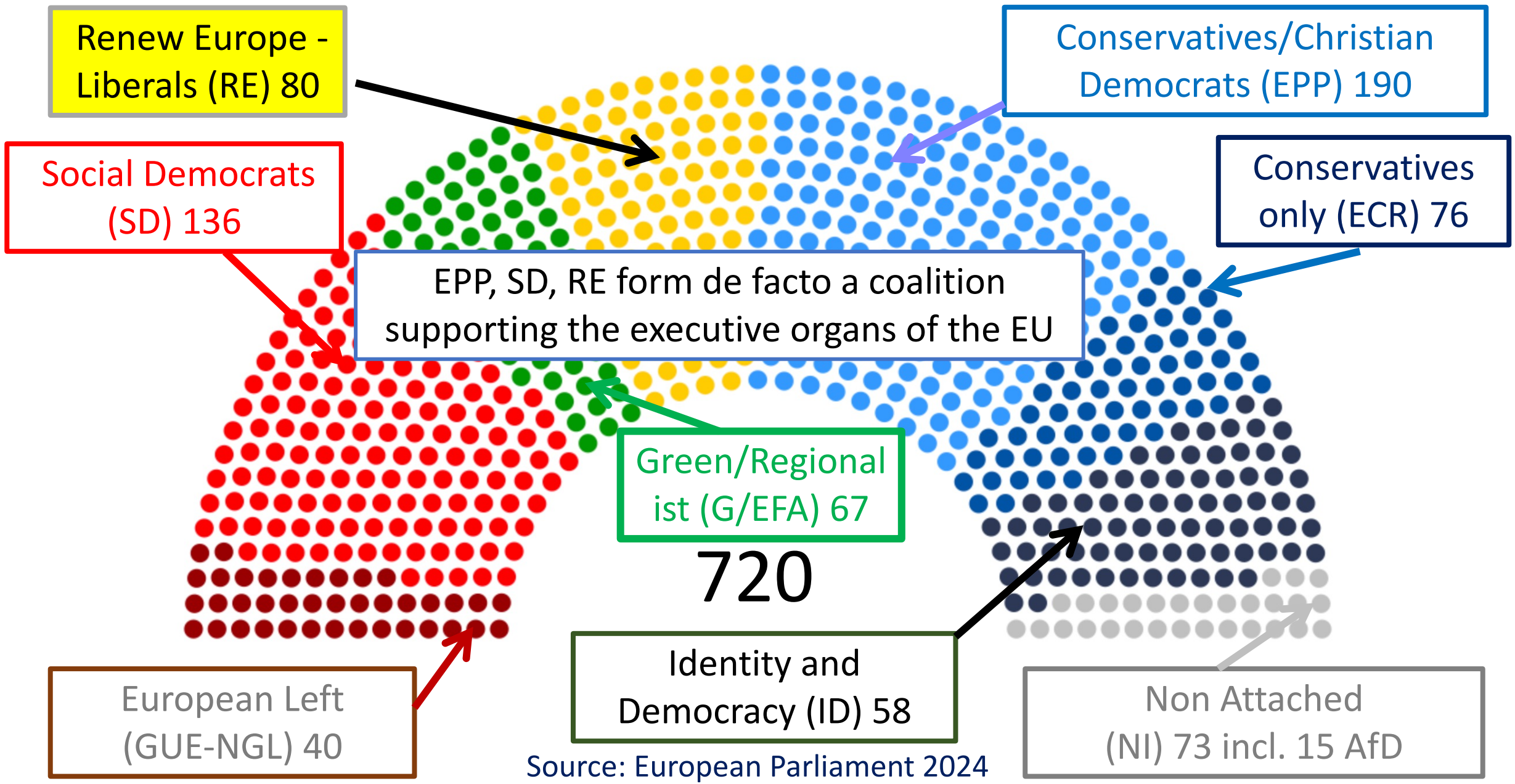
– Approval of Members of the European Commission proposed by the European Council.
– Passing legislation, incl. EU-budget, in co-decision process (with Council of Ministers).
– Political supervision over the EU's activities, including budget control.

- Plenary sessions in Strasbourg and additional sessions in Brussels.
- It has 20 committees which do the preparatory work for plenary sessions.
- 8.000 staff



Louise Weiss building, Strasbourg

Composition of the European Parliament 2024-2029.



Source: European Parliament 2024

The European Parliament.

- Speakers in the European Parliament are entitled to speak in any of the EU's 24 official languages.
- Simultaneous interpreting is offered in all plenary sessions, and all final texts of legislation are translated.



Plenary hall of EP in Strasbourg.

- With twenty-four languages, the European Parliament is the most multilingual parliament in the world: engages up to 700 interpreters.
- Citizens may also address the Parliament in Basque, Catalan/Valencian and Galician.

The European Commission (EC).

- **The European Commission (EC) is the executive branch of the EU.**
- **Tasks:**
  - Proposing legislation, incl. budget of the EU: **"right of initiative"** – unique powerful construction! The European Parliament cannot make legislative proposals as in national systems.
  - Implementing the decisions taken by Council and Parliament.
  - Control of implementation of Community legislation in Member States.
  - Upholding the EU treaties ("Guardian of the Treaties").
  - Managing the European Union in all Community policies (including the budgets).
- Commission has a „substantial degree of independence" in exercising its powers and it must not take instructions from any national EU government.
- Individual Commissioners are – in principle - independent from their nominating state but act as important links to the Member States.

The European Commission (EC).

- **Composition of the European Commission:**
- 27 Commissioners, one from each Member State.
- Commissioners proposed by Member States in agreement with the future President of the Commission (Austria Magnus Brunner).
- Appointment by the European Council.
- Approval of President and other Commissioners by European Parliament (absolute majority).

- Function period 5 years.
- Each Commissioner manages a certain EU portfolio, e.g. environment.
- All Commission decisions made as an entity (the “College”) and must be unanimous.
- The Commission is answerable only to the European Parliament.



The Berlaimont Building in Brussels, Headquarters of the European Commission

The College of Commissioners 2025-2029.





- Commission civil service: 46 directorates-general (DGs) and services, based in Brussels and Luxembourg.
- 32.000 civil servants from all MS selected in competitions.
- EU administration costs 25 Euro per EU citizen per year.

Commissioner for Internal Affairs and Migration Markus Brunner (Austria).

The Two Domains for Decision Making.

- **Community domain:**
  - Covers the common policies (contained in the Treaties), where legislative proposals are made by the Commission only and decisions are taken by Council and Parliament (qualified majority), e.g. Environment, Trade, Single market (and derived policies like energy, competition rules….), Police and Judicial Cooperation, Agriculture, Fisheries …
- **The Intergovernmental Domain - Common Foreign and Security Policy:**
  - Proposals for actions made by the European Council and decisions are taken by this body alone (unanimous).
- ***Other policy areas which are not covered by the Treaties:***
  - No competence of EU institutions – legislative decisions can only be taken at national level (e.g. health, social standards, speed limits).
  - Discussions and common decisions at the Council level can nevertheless take place in case of urgent needs (e.g. Corona).

The EU Judicial System.

The EU judicial system consists of 2 levels:

- **The European Court of Justice (Europäischer Gerichtshof - EUGH)**
- **The General Court of the European Union ("Court of First Instance")**

– Based in Luxembourg they have the task of ensuring that the law is observed in the interpretation and application of the Treaties of the EU. 2.000 staff.

- **The European Court of Justice (ECJ) established 1952 is the highest court of the EU.**

– It has the ultimate say on matters of EU law in order to ensure its equal application across all EU member states.

– It thus creates – similar to the US Supreme Court – "Case Law".

– It is composed of 27 judges, one from each Member State.

- **The General Court was created in 1989.**
- It has jurisdiction to hear and determine at first instance all direct actions brought by individuals and the Member States.

– It is composed of 54 judges, two from each Member State.

Examples for Decisions of European Court of Justice.

- **Costa vs. ENEL** 6/64 [1964] ECR 585
  - "Community law takes precedence over the Member States own domestic law."
- **Stauder** 29/69 [1969] ECR 419
  - "Fundamental rights [are] enshrined in the general principles of Community law and protected by the Court."
- **Defrenne III** 149/77 [1978] ECR 1365
  - "The elimination of sex discrimination is a fundamental principle of EU law."
- **Austria vs. Germany (2019):**
  - „The German vignette for the use by passenger vehicles contrary to EU law. The charge is discriminatory since the economic burden of the charge falls, *de facto*, only for foreigners."
- **Commission vs. Apple (2024):**
  - "The Court upholds the Commission's Decision to impose a penalty of 13 billion EUR for violation of the competition rules by arranging a favorable tax deal with Ireland for sales in the EU amounting to a tax rate of 0,005%.
  -

The Court of Auditors.

- **The “financial conscience” of the European Union.**
  - Based in Luxembourg it consists of 27 independent members (one from each Member State).
- **Tasks:**
  - Controls expenditures of Community institutions and proper use by recipients.
  - Can audit any person or organization dealing with EU funds.
  - Ensures timely and complete transfer of contributions of the Member States.
  - Controls that the EU budget is used properly.



- Consequences of Audits:
  - „Declaration of Assurance“ if everything is fine.
  - Corrective measures in case of misinterpretation of rules.
  - Repayment of money received and fines in case of fraud.
  - Example: subsidies for farmers in mountains.

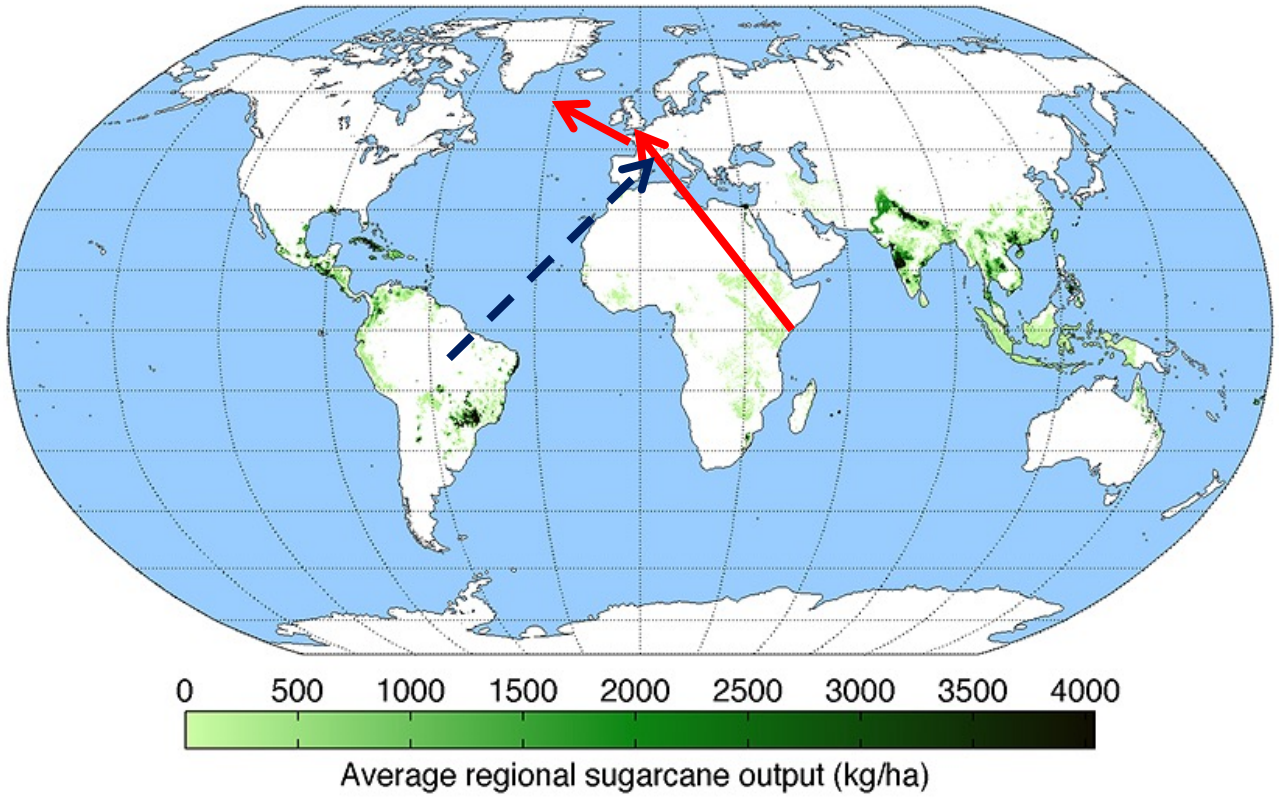
The European Anti-Fraud Office.

- The **European Anti-Fraud Office** (**OLAF** *Office Européen de Lutte Anti-Fraude*):
  - OLAF is based in Luxemburg and has 500 staff.
  - For its investigative and operational tasks OLAF works in full independence.
- **Tasks:**
  - Protecting the financial interests of the EU.
  - Fighting fraud affecting the EU-budget, e.g. by misuse of subsidies.
  - Investigating irregular activities, including misconduct, within the European institutions.
  - 250 investigations per year.
  - 10 billion EUR returned to EU since its foundation.
- Administrative investigative body with no judicial or disciplinary powers.
- Results of the investigation are reported to the national judicial authorities or the European institutions concerned for further action.
- But it cannot oblige European or national prosecutors to act.

The European Anti-Fraud Office.

➢ **Sugar imports in the framework of preferential trade arrangements**

- Sugar originated in some African countries can be imported into the Community free of import duty upon proof of origin.
- In 2004, British customs authorities informed OLAF of a possible irregular importation of sugar declared as originating in Malawi.



- OLAF established that more than 4.000 tons of raw cane sugar, originating in a South American country, processed in Bulgaria before being imported to the United Kingdom, were declared as originating in Malawi, Zimbabwe and Zambia.
- This resulted in the evasion of approximately € 2 million of import duties.
- False movement certificates had been presented at import to disguise the real origin of the goods.

The European Central Bank (ECB).



ECB Headquarters in Frankfurt
Architects: Coop Himmelblau, Austria

- The **European Central Bank** (**ECB**) is the central bank for the Euro and responsible for monetary policy covering the 21 Member States of the Eurozone.

  - The European Central Bank is one of the world's most important central banks.
  - Established by the European Union (EU) in 1998 with its headquarters in Frankfurt.
  - 3.500 staff.



Christine Lagarde (FR),
President of European Central Bank

The European Central Bank.

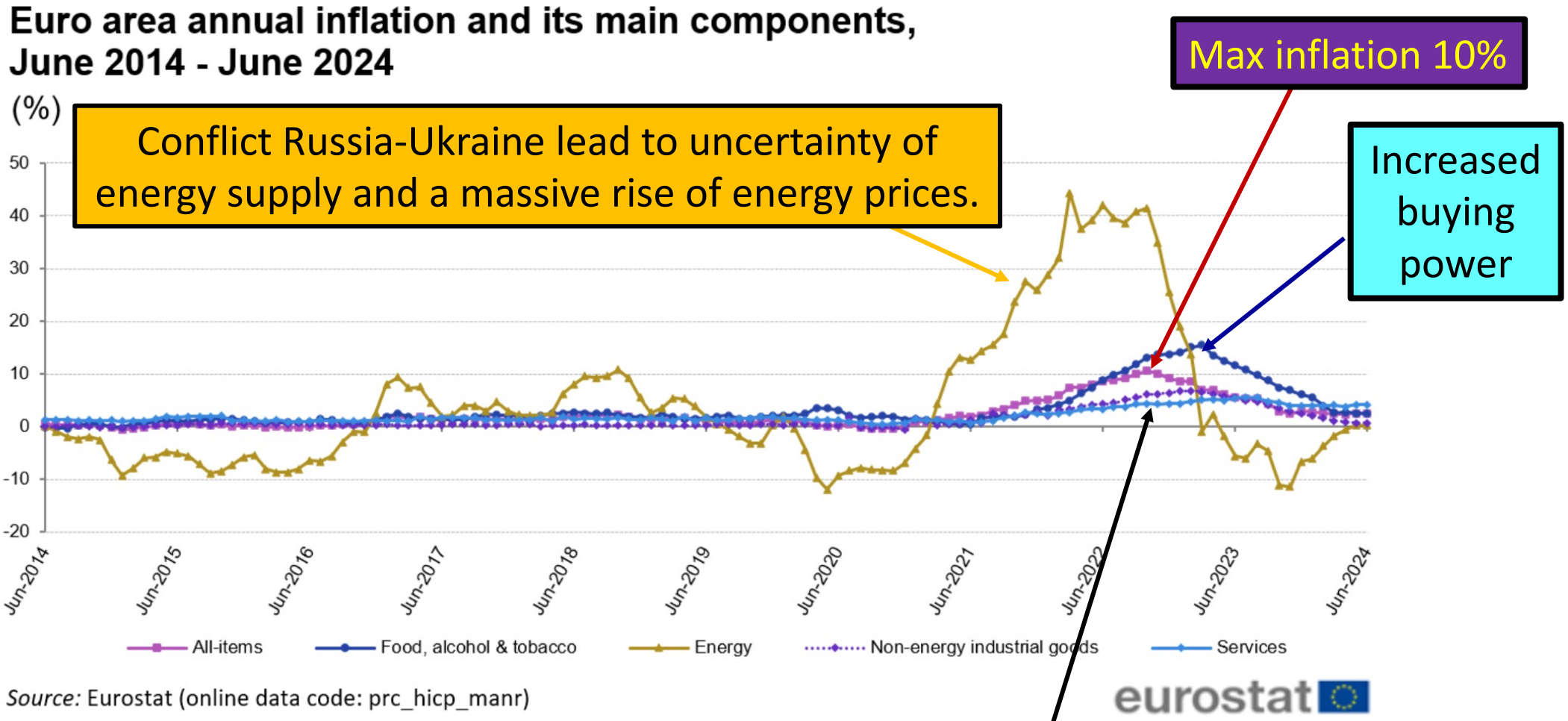
- **Tasks:**
  - Define and implement the monetary policy for the Eurozone.
  - Issues Euro and thus determines the money volume in the Eurozone.
  - Set the interest rates for interbank loans (“Leitzins”).
  - Promote smooth operation of the money market infrastructure.
  - Conduct foreign exchange operations and manage the foreign reserves.
  - Coordination of monetary policy with the non-eurozone EU Member States.
- Like all other central banks in the liberal market democracies the ECB works (at least in principle) independently from governments.
- Supreme decision making body: Governing Council consisting of Members of the ECB management and the governors of the national central banks which have adopted the Euro.

The European Central Bank.

- ***The primary objective of the ECB is to maintain price stability within the Eurozone, or in other words to keep inflation low.***
- The Governing Council defined price stability as inflation of below, but close to 2%.
- By setting the interest rate for inter-bank loans the ECB determines the actual interest rates for credits and deposits in the Eurozone.
- Through this it has a huge influence on the financial policy in the whole EU and the value of the Euro.
- In its monetary policy it follows to some degree the US Federal Reserve, but not completely: interest rate for inter-bank loans („Leitzins“) in EU now 2,4%, in USA 3,75% (July 2026).
- Inflation in Eurozone 2,9% (July 2026).
- The ECB cooperates with national banks on a global level through the Bank for International Settlements (BIS, Basel).
- The exclusive right of the ECB to issue Euro means that Eurozone Member States cannot any more generate money, thus cannot make their own monetary policy (e.g. depreciations - as happened frequently in the past with Lira, French Francs, Greek Drachma).

The European Central Bank.

The difficult task to keep inflation at 2% in the Eurozone
in crisis times (Corona, conflict Russia-Ukraine).



The European Central Bank.

- **Strengths of the Eurosystem:**
  - More stable financial system since speculation against a currency with a big money volume and a strong economy behind is difficult.
  - Euro is a major global reserve currency with 20% share (2.500 billion $).
  - US$ is still the dominating currency with a share of 60% of the global reserves (8.000 billion $).
  - Strong position in relation to US$ and other currencies of Third Countries.
  - High confidence of international investors and consequently normally easy financing of sovereign (state) debts at low interest rates and for a long term (Austria: Staatsanleihe 2017 for 100 years at 2,1% interest rate, presently 3,8% for 10 years bonds).
- **Weaknesses of the Eurosystem:**
  - Major discrepancies between economic performance and governmental spending in some Eurozone Member States (GR, IT, FR…).
  - Huge differences in sovereign debts of Member States.
  - Massive violation of the original stability criteria (“Maastricht criteria”).
  - Lack of a common fiscal and economic policy for the EU.

The European Investment Bank.

- The **European Investment Bank** (EIB) is the European Union's long-term lending institution established in 1958 and based in Luxembourg.
- 4.000 staff.
- As a policy-driven bank, the EIB supports the EU’s priority objectives, especially European integration and the development of economically weak regions.
- The EIB is an international financial institution owned by the Member States of the European Union.
- Since 1958 the bank funded in total more than 12.000 projects with a total credit volume of 1.200 billion EUR.
- For the fiscal year 2025, EIB approved around EUR 100 billion in various loan products, mostly for EU Member States.
- 50% allocated to projects serving ecological sustainability and climate measures.
- About 15% of the annual financing volume go to ca 160 partner countries (like in the Mediterranean region, South Eastern Europe, Africa…).
- These EIB loans stimulate a total annual investment of 250 billion EUR.

Institutions and Governance of the EU:
The European Union Agencies.

- **Agencies of the European Union** are decentralized bodies of the European Union (EU), which are distinct from the “Institutions”.
- Agencies are established to accomplish specific tasks and each of the 46 agencies has its own legal personality.
- Agencies are located in different cities throughout the European Union.
- Their size is typically several hundred staff – usually specialists for the given area.
- The tasks of the agencies varies strongly from pure reporting functions (like the Environment Agency - EEA) to executive tasks (like Frontex for the protection of the European external borders).
- An agency is normally managed by a Director appointed by the European Commission (after consultation with the Member States).
- Each agency has a governing council in which all Member States have one representative.
- Some agencies have membership beyond the EU, like the EEA since the agenda affects directly other European countries (like environmental legislation).

The European Environment Agency (EEA)

- Founded 1994, Copenhagen, 300 staff and intensive interaction with all National Environmental Agencies (38 members and cooperating countries, 600 national partner institutions)
- Focus point of environmental monitoring and reporting in the EU
- Products:
  - Data and indicators on environmental state and Sustainable Development



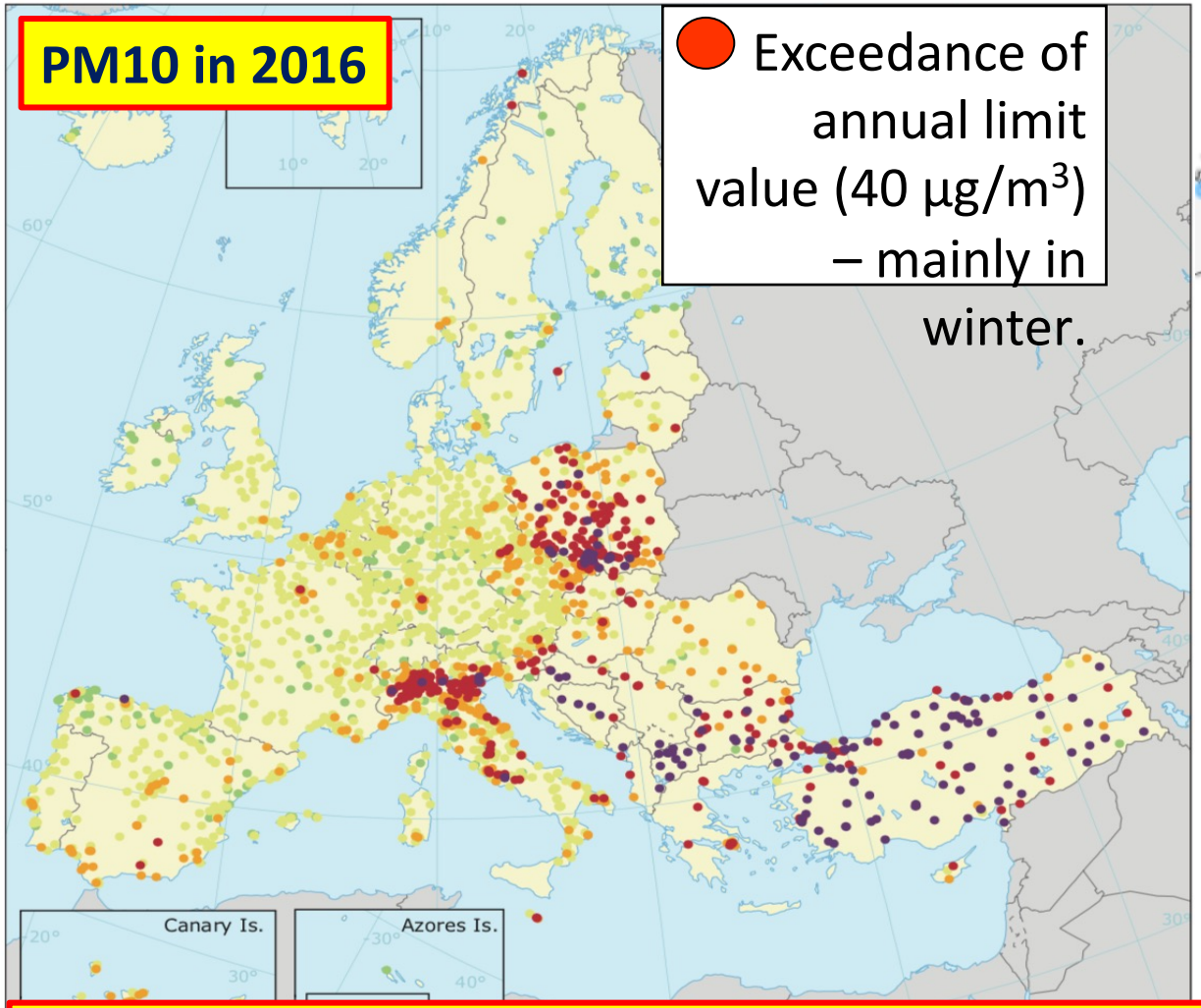
EEA Copenhagen

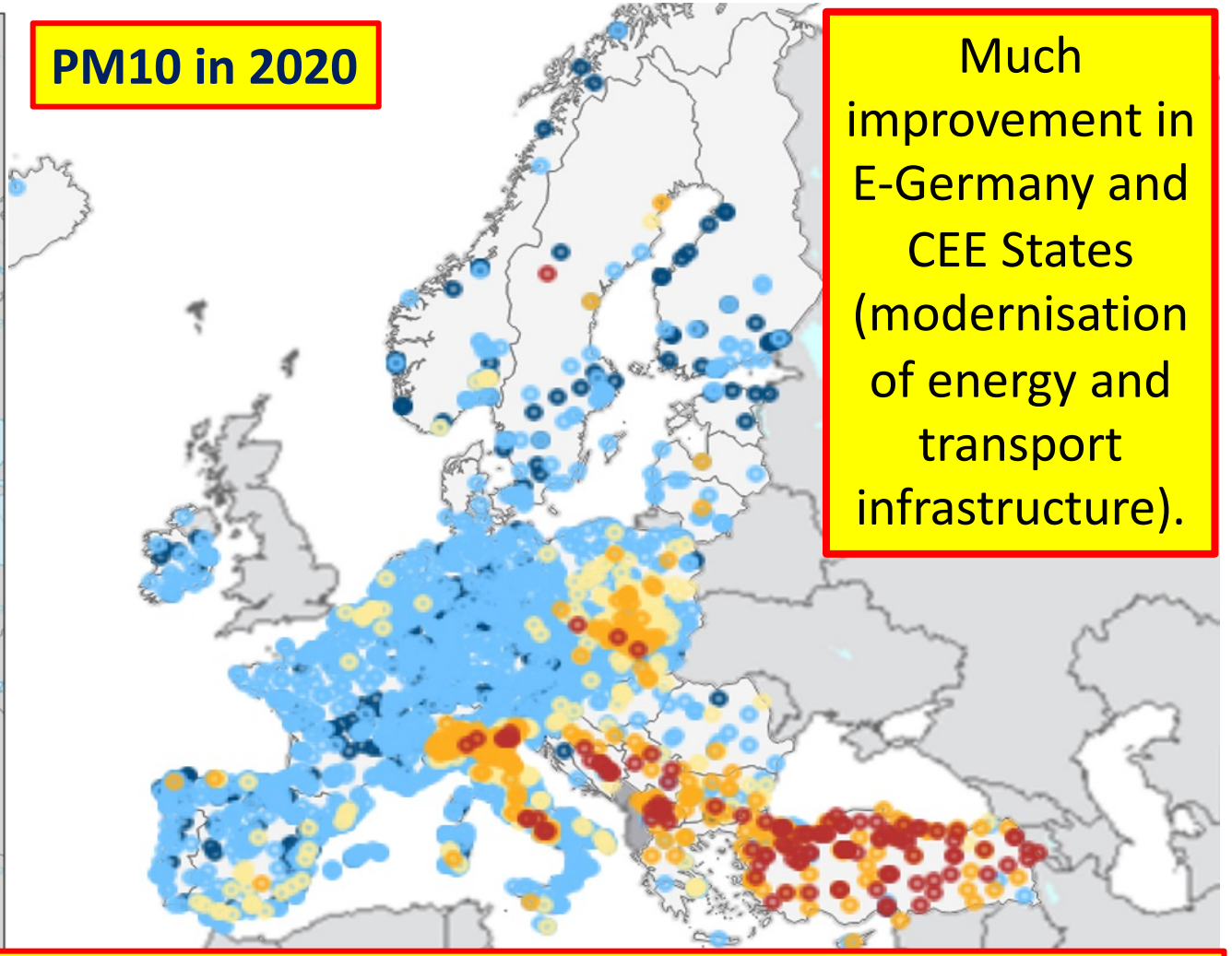
  - Reports: e.g.
    - **The European Environment - State and Outlook 2025** *https://www.eea.europa.eu/en/europe-environment-2025*
    - Renewable Energies in Europe
    - Mapping and assessing the condition of Europe's ecosystems
    - Annual EU Green House Gas Inventory
    - Impact of Climate Change in Europe
    - Solutions for restoring Europe’s agricultural ecosystems

Source: European Environment Agency

Regional Exposure to Air Pollutants in Europe.

Source: EEA

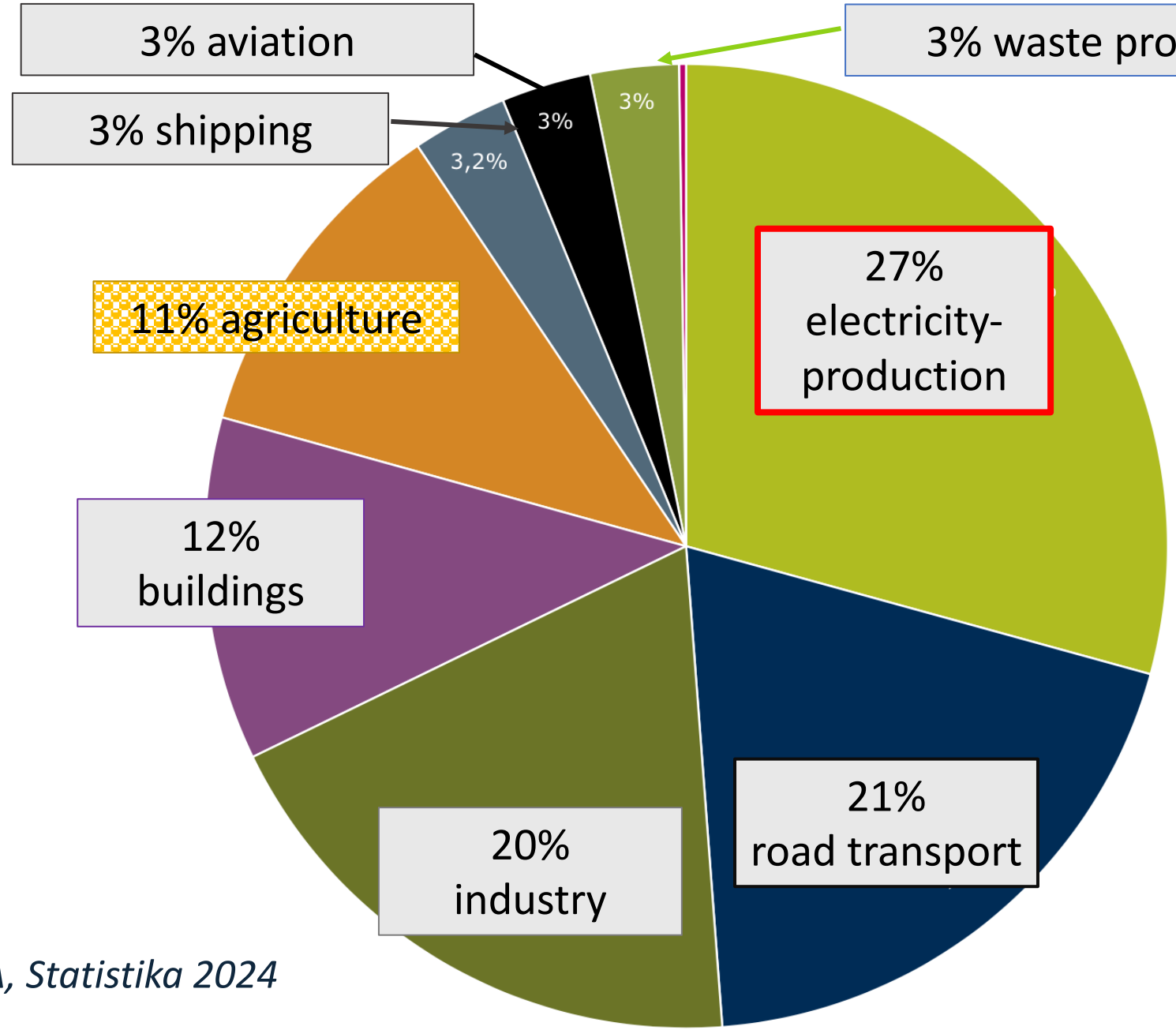




Major sources for PM_{10}:

•dust from road traffic (minerals), vehicle emissions (carbon), small scale heating (carbon), regional transport of air pollutants (secondary particulate matter), industrial emissions

EU Green House Gas Emissions by Sector (2023).



80% CO_2

12 % CH_4
5% N_2O

Total GHG-emissions EU27 in 2025:
3,25 Gto CO_2equ
(6% of global emissions)

Source: EEA, Statistika 2024

The European Food Safety Authority (EFSA)

- Founded 2002, Parma, 600 staff, 38 participating countries and observers
- Provides independent scientific advice (through scientific committees) and communication on risks associated with the food chain.
- Covers all matters impact on food and feed safety, including animal health and welfare, plant protection and plant health and nutrition.
- **Products:**
  - Reports on food quality (like nutritional value), contaminants, food safety issues, monitoring of food crisis.



Salmonella spreading in 2007:

- Salmonella most common cause of food-borne disease in EU:
- A total of 5,609 outbreaks of Enteritis Salmonellosis were reported in 2007, which affected almost 40,000 people and caused 19 deaths.

The European Food Safety Authority (EFSA).

Nutritional and medical value of Ginseng:

- According to Traditional Chinese Medicine, Panax ginseng promotes yang energy and stimulates the body.
- EFSA opinion: a cause and effect relationship cannot be established between the food constituents and the proposed claimed effects.



Ginseng roots in a market in Seoul

Genetically modified organisms (GMOs):

- Risk assessments on new GMO applications and renewals of existing authorisations for the use of GMOs in the internal market.
- Example: EFSA considers new GM maize MON 863 as safe as conventional maize.

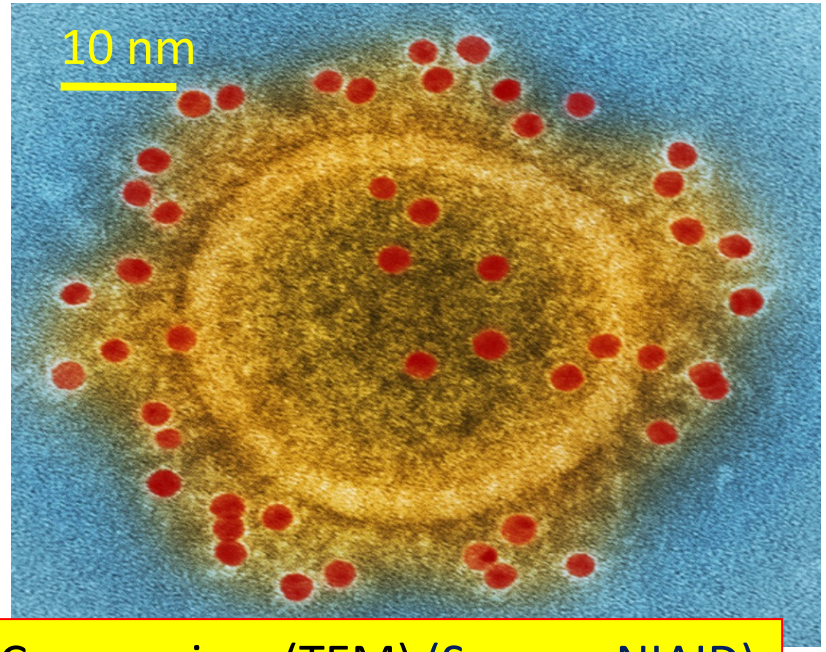
Globally 80% of soy, 35% of maize and 25% of rapeseed are GMOs.

European Centre for Disease Prevention and Control (ECDC).

- Founded 2005, Stockholm, 600 staff, 30 participating countries, EU link with WHO
- General support in Europe's defenses against infectious diseases.
- Publishes information on prevention and control of communicable diseases.
- **Products:**

– Annual Epidemiological Report on 49 Communicable Diseases in Europe

– ECDC Situation reports: „Real time" information of spreading of communicable diseases, e.g. Swine Flu 2009, Covid-19



Corona virus (TEM) (Source: NIAID)

The SARS-Covid19 (Corona) Pandemic:

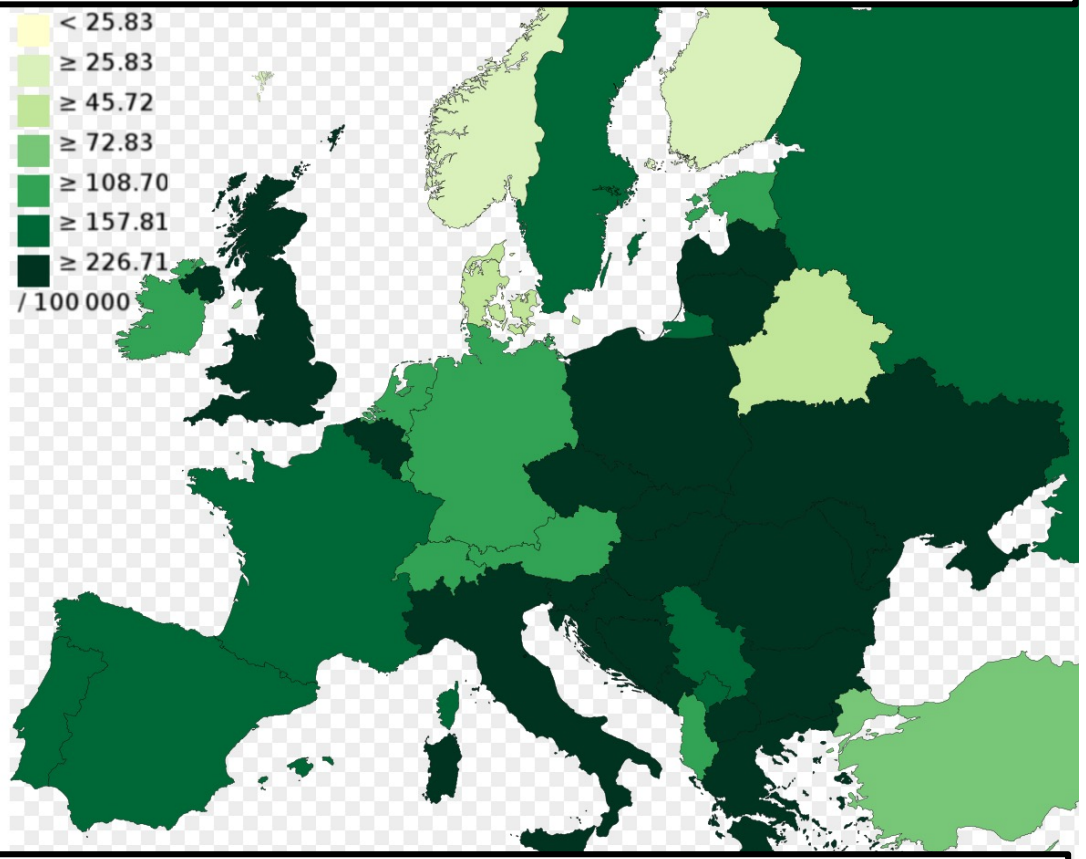
- Appeared in the Wuhan, China Dec.2019 due to a laboratory accident.
- Spread globally in various mutations.
- Globally 700 million people were affected and more than 6 million people had died ("with or at Covid").
- Dark figures for both cases very high.
- The pandemic ended officially May 2023 (WHO).

Role of ECDC in Corona Pandemic.

- Assessment of infection situations: situation dashboard.
- Risk analysis and definition of risk classes on the basis of the 7 or 14 day “incidence” per 100.000 inhabitants (highly contested, but generally accepted by the Member States).
- Maps in support of Council Recommendations for travelling.

Note: Public Health is not covered by the EU Treaties. All decisions are up to the Member States. Therefor very different approaches to combat the epidemy:
Sweden – no obligatory measures, no masks, no lock downs, only recommendation to minimize contacts.
Austria: 19 lock downs, closure of schools, masks, vaccination requirements for attending public places.

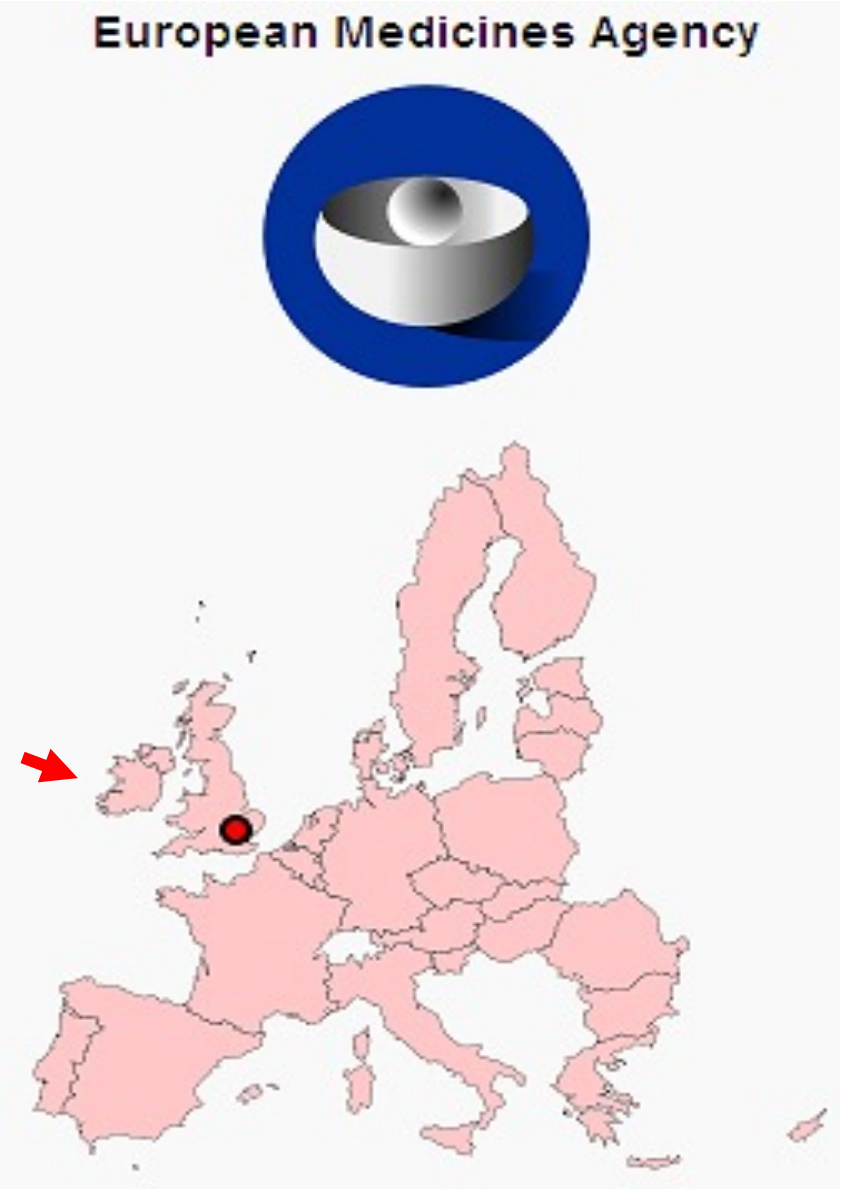
Number of deaths in EU/EEA
per 100.000 residents.



Austria: Testing hysteria!
Schools carried out 115 million tests, 280.000 positive = 0,2%!!!

European Medicines Agency (EMA).

- Founded 1995, Amsterdam, 1.000 staff, 40 participating countries and partners
- Management of the European Medicines Regulatory Network (EMRN)
- Harmonisation of the work of existing national medicine regulatory bodies.
- Evaluation and approval of medicinal products.
- Authorization of medicines eligible for single European approval, like the Corona vaccines.
- Replaces separate approvals from each member state.
- Majority of genuinely new medicines now authorized by EMA.
- The EU is currently the source of about one-third of the new drugs brought onto the world market each year.



Role of EMA in Corona Pandemic 2020-2022.

- EMA together with its partners within the European Medicines Regulatory Network (EMRN) played a key role in the EU's response to the pandemic from the outset.
- Within days of the World Health Organization declaring the novel coronavirus outbreak a public health emergency of international concern (PHEIC), WHO's highest level of alarm, EMA initiated its public health threats plan on 4 February 2020 to be ready to support the development of new treatments and vaccines.
- By 2020 EMA had provided 75 scientific advice procedures for dealing with the pandemic. Several hundred more followed till now.
- Advice of European Commission .
- Coordination of supply shortages in member states.
- **Approval of newly proposed vaccines:**

– Biontech Pfizer, AstraZeneca, Moderna, Johnson and Johnson

– "Fast lane process": approval in less than a year based on fewer data.

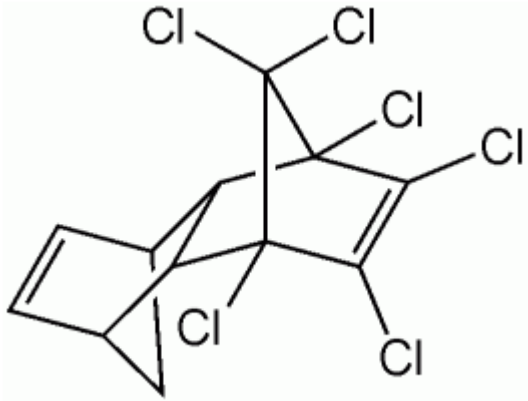
– Safety monitoring of vaccination process.

Source: https://www.ema.europa.eu/en/human-regulatory-overview/public-health-threats/coronavirus-disease-covid-19/covid-19-public-health-emergency-international-concern-2020-23

European Chemicals Agency (ECHA).

- Founded 2007, Helsinki, 600 staff
- Manages the technical, scientific and administrative aspects of the Registration, Evaluation, Authorization and Restriction of Chemicals (REACH) system.
- REACH requires all chemicals of one ton or more in volume that are manufactured in or imported into the European Union tested for health and safety and registered with ECHA.
- Most important chemicals of environmental relevance: pesticides, fertilizers, (agro)pharmaceuticals, industrial and urban waste products……

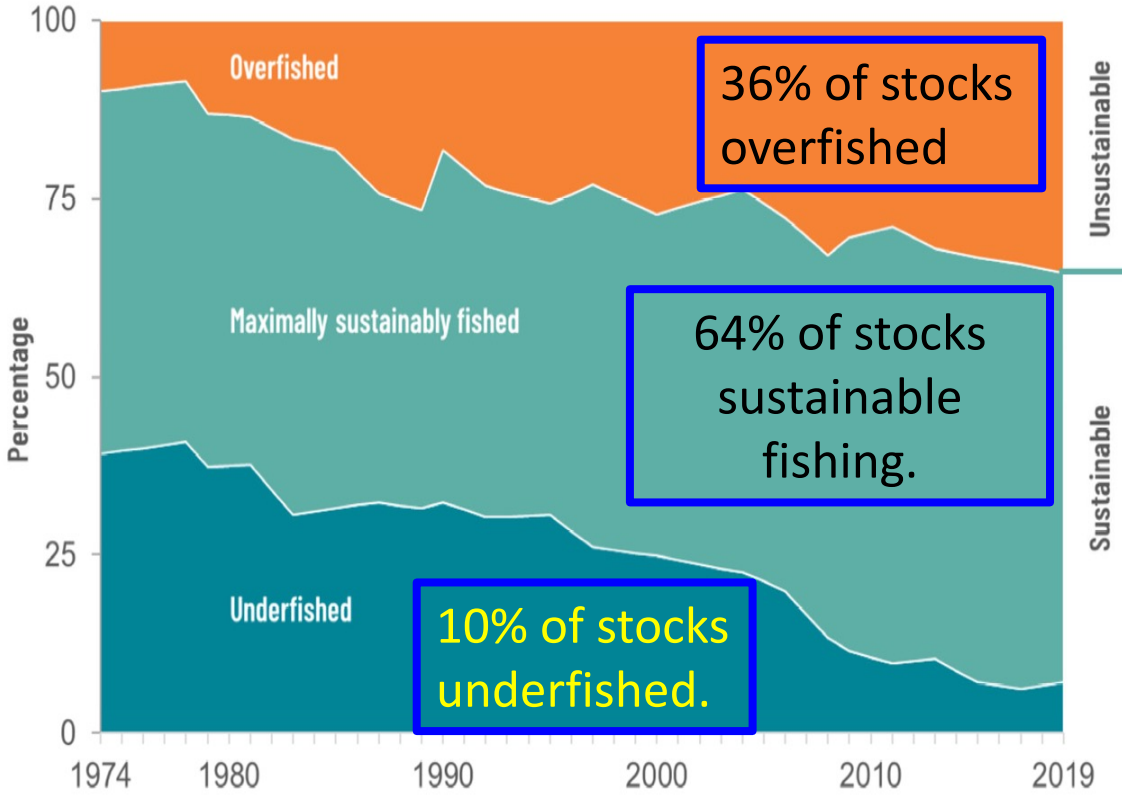
- Products:
  - Guidance documents: on REACH processes and methods, to be used by industry and authorities.
  - Register of chemicals: registry of intentions, list of pre-registered substances, substances of very high concern for authorization…



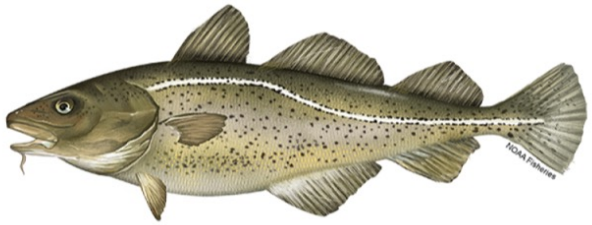
100 million tons of toxic chemicals produced annually in EU (EUROSTAT)
>100.000 chemical compounds produced in industrial scale

Community Fisheries Control Agency (CFCA).

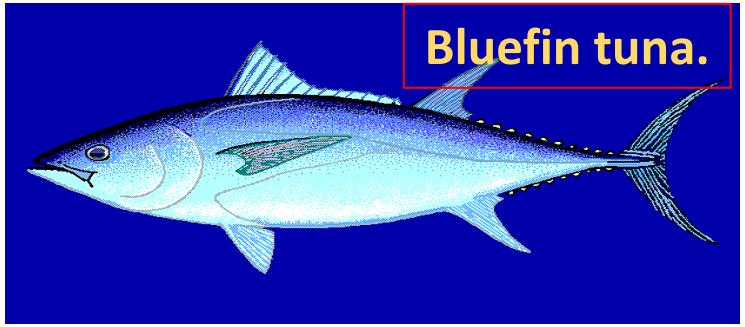
- Founded 2005, Vigo, 250 staff
- Co-ordinates the operational activities of Member States in the area of fisheries and promote uniform application of the rules of the Common Fisheries Policy.
- The Common Fisheries Policy (CFP) is fighting overfishing and contains quota on fishing vessels and catches, assignment of operational zones.



- Products:
  - Monitoring system for ships and catches.
  - Inspection at sea and onshore: jointly with national authorities.
  - Operation of surveillance system: EU fisheries monitoring center using satellite tracking of movements of EU vessels.



Atlantic cod.



Monitoring of EU Fishing Vessels.

Location and tracking of fishing boats brings enhanced control opportunities to national authorities, as well as improved management to fleet operators.

Iceland

200 mile zone – only for Icelandic fishers

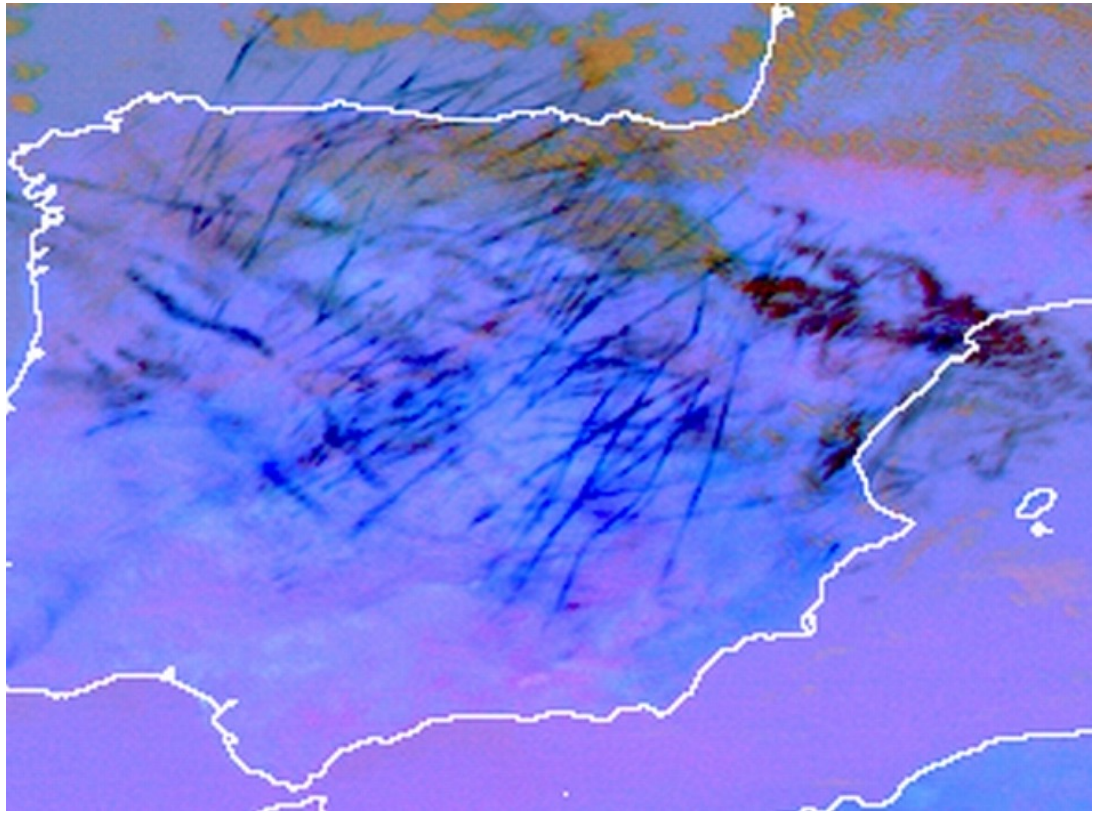


Satellite based tracking of fishing boats.

European Aviation Safety Agency (EASA).

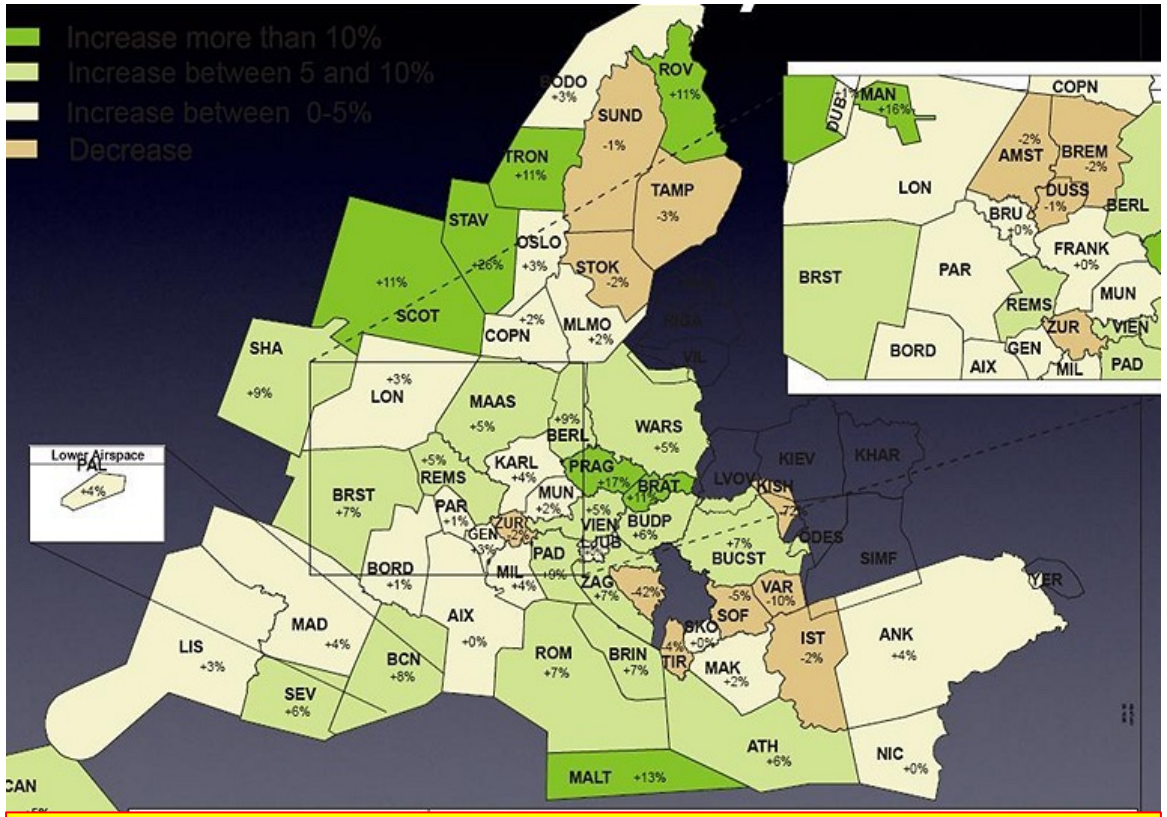
- Founded 2003, Cologne.
- Promoting new organizational schemes for European air traffic: The Single European Sky.
- Implementing and monitoring safety rules.
- Type-certification of aircraft and components.
- Authorization of third-country (non-EU) operators.

- Products:
  - Advice and proposals for legislation to Commission, Council and Parliament.
  - Certificates for aircrafts and components.
  - Black list of airlines not having proper safety standards: ca 100 companies, most of them from Africa, Kazhakstan, Kyrgyz Republic, Indonesia, Philippines.



The Single European Sky.

- Design, management and regulation of airspace will be coordinated throughout the European Union (ECAA area).
- European air space is some of the busiest in the world:
- >30.000 flights/day, > 1 billion individual passenger flights per year, growth rate of air traffic up to 10% per year.



Current European Air Space Control System.

- Presently Air traffic management in the EU is undertaken by member states, co-operating through EUROCONTROL.
- System extremely inefficient:
  - air traffic control boundaries follow national borders,
  - large areas of European airspace reserved for military use,
  - summer 2018: 30% of flights delayed.

European Union Agency for the Space Program (EUSPA).

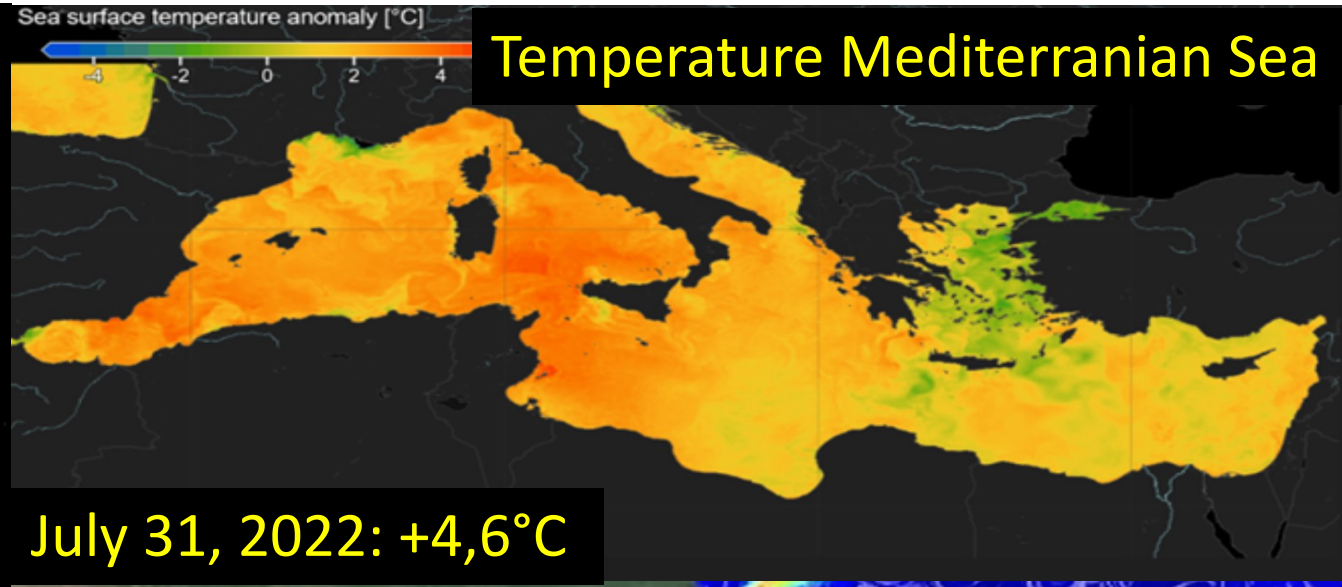
- Founded 2021 (GNSS 2004), Brussels.
- Manages the European Union Space Programme GNSS (Galileo/EGNOS), Copernicus (earth observation), and GOVSATCOM (in cooperation with ESA).
- **Galileo/EGNOS:**
  - Most accurate global navigation system, compatible with GPS.
  - 30 satellites in 22.000 km altitude.
  - Each satellite will have atomic clocks of ultimate accuracy (<1ps): positioning accuracy a few cm for high-performance receivers, 4 m for private NavSat use.
- **Copernicus:**
  - Most advanced earth observations system for land, marine, air monitoring and support to crisis management.
  - Extremely important for observation of climate variables.
  - EU world leader in satellite-based earth observation.
- **GOVSATCOM:**
  - Space-based communication services facilitating security-critical missions and operations and the management of critical infrastructures.

EU-ESA Copernicus – Global Leadership Earth Observation.

30 Satellites (Sentinels)
weight 1-2 to
height 700-800 km
Width of observation path:
300 - 1.000 km

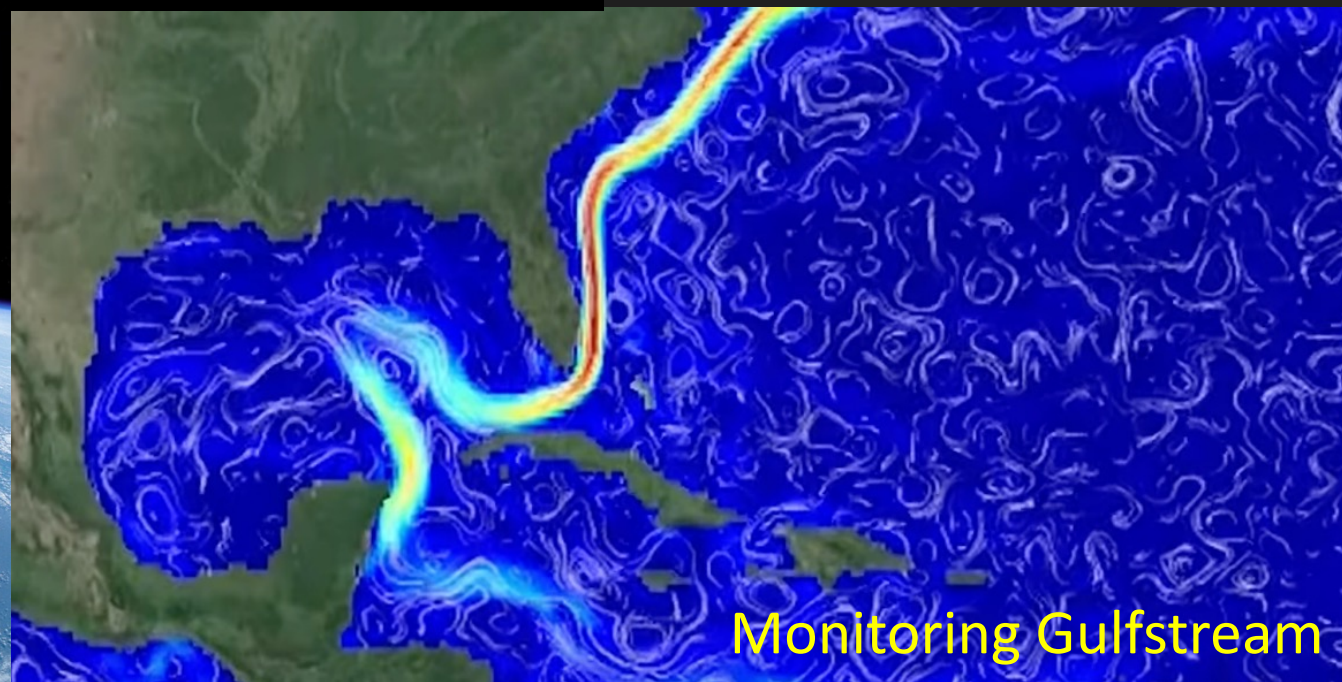


Source: ESA



Temperature Mediterranian Sea

July 31, 2022: +4,6°C



Monitoring Gulfstream

The European Border and Coast Guard Agency (EBCGA).

- Founded 2005 as FRONTEX**,** Warsaw, 2.100 staff, only a few airplanes and boats (<u>further equipment has to be borrowed from the EU member states).</u>
- Responsible for coordinating the activities of the national border guards in the field of management and protection of external borders.
- Operational support for Member States who deploy airplanes, ships, military personnel.
- Operations in migration crisis Triton (2014) and Themis (2019):

– monitoring the borders EU/Turkey and EU/North Africa to reduce illegal migration– very limited success.

- 2024 Council decision to increase staff to 20.000/30.000 (by 2030?).
- Should form a European Border and Coast Guard along with national authorities for border management.

– Building-up of these capacities in (slow) progress.

- Length of external frontiers of EU: 12.033 km.
- Massive differences between Member States on function and mandate!
- *Comparison with US Coast Guard: 40.000 staff, 250 ships, 200 airplanes.*

European Union Agency for Asylum (EUAA).

- Founded 2022, La Valetta, 500+ staff.
- EUAA should provide for greater convergence in asylum and reception practices across the EU, in line with the high standards of the Common European Asylum System - CEAS (which does up-to-now not function).
- The Agency should be able to:
  - quickly deploy operational assistance to EU countries,
  - draw on a permanent Asylum Reserve Pool of 500 national officials who can be quickly deployed anywhere across the EU,
  - monitor how EU countries implement EU law on asylum and reception practices.
  - **Protect** the **fundamental rights of asylum seekers** by:
    - appointing a 'Fundamental Rights Officer',
    - establishing a complaints mechanism,
    - strengthening the role of civil society organisations and NGOs,
    - improve coordination with countries of origin and transit.

European Defence Agency (EDA).

- Founded 2004, Brussels, 140 staff.
- Serves the Common Foreign and Security Policy (CFSP) and reports directly to the Council of the European Union.
- Supports the Member States and the Council in their effort to improve European defence capabilities in the field of crisis management and to sustain the European Security and Defence Policy by
  - development of defence capabilities for crisis management,
  - promotion and enhancement of European armaments cooperation,
  - strengthen the defence technology and industrial base and create an internationally competitive European defense equipment market.
- The Head of the Agency is the High Representative of the European Union for Foreign Affairs and Security Policy, Kaja Kallas, who also chairs the decision making body, the Steering Board, composed of the defense ministers of participating Member States.
- Management of the EDA is done by a Chief Executive.

The Inefficient EU Military System.

- Low efficiency of European military system:
  - Lack of powerful equipment, sufficient number soldiers and poor cooperation structures.
  - European diversity in technical military equipment:
    - There are 8 major European tank versions (Leclerc, Leopard 2, AMX2, Challenger 2, Ariete-C1,Centauro, PT-91, T-72CZ), but the US military uses only one tank version.

Source: Sipri Stockholm 2022





Technical Cooperation in Arms Manufacture.

- **Eurofighter Typhoon:**



Eurofighter Typhoon is built by a consortium of EU countries (FR, UK, DE, IT, ES).
600 delivered, 680 ordered.
Unit Price ca 120 million Euro.



- **Future Combat Air System (FCAS):**
  - New Generation Fighters should work together with Unmanned Remote Carriers – all connected to other systems in space, in the air, on the ground, at sea and in cyberspace via a data cloud called the “Combat Cloud.”
  - These connected platforms should act as sensors, effectors and decision nodes working together within an open scalable service oriented architecture.

The European Union Agency for Cybersecurity (ENISA).

- **ENISA - standing for its original name European Network and Information Security Agency.**
- Founded 2004, reorganized 2019 Athens, 300 staff plus hundreds of experts from Member States. (USA 30.000 in National Security Administration, Fort Mead, Md).
- Supports the EU Members States in improving their cybersecurity capabilities.
- Stimulates the development of a cooperative response to large-scale cross-border cybersecurity incidents or crises.
- Develops cybersecurity certification schemes.
- **Extent of the problem:**

– Annually more than 300 million new pieces of malware - computer viruses or other malicious software - were created in the last years.
– One million new threats were released each day.
– Can inflict huge damages for business.
– Opens misuse of personal data by criminals, autocratic governments.
– Probably the most important threat to national security of States today.
– Hybrid warfare most likely in serious conflicts.

Source: EU Home Affairs

Some Critical Cyber Attacks of the Recent Past.

- **January 2016.**
  - Austrian-based aerospace parts manufacturer FACC had $54.5 million stolen in a cyber attack.
- **July 2017.**
  - Hackers attacked a partner of UniCredit, Italy's largest bank, gaining access to loan and biographical data from 400,000 client accounts.
- **May 2021.**
  - Attack on the largest pipeline system in Eastern USA. Stop of transport of oil and fuel for several days. Ransom attack. Several million dollars paid by company. Suspects are hackers operating from the territory of the former Soviet Union.
- **March 2024.**
  - Russian hackers leaked an intercepted conversation between German military officials about the country's support for Ukraine.
- **March 2024.**
  - Switzerland's National Cyber Security Centre (NCSC) confirmed that leaked data from a May 2023 breach included 65.000 documents from the Federal Administration.

Source: https://csis-prod.s3.amazonaws.com

Some Critical Cyber Attacks of the Recent Past.

- **May 2024.**
  - Germany accused Russian hackers of breaking into the emails of Germany's Social Democrats, the leading party in its governing coalition, and recalled its ambassador from the country. Further targets included German defense and aerospace companies.
- **Spring/Summer 2025.**
  - Attacks on Marks & Spencer (with on-line sale system blocked for several months) , the supermarket chain Co-Op and the National Health Service in the UK with the aim to get ransom money.
- **August 2025.**
  - Attack on British car manufacturer Jaguar Land Rover (owned by Indian Tata Group) cost the company 2 billion EUR. It affected the company, 5.000 suppliers and business partners. Production was completely stopped for 6 weeks. These mostly small companies came into economic difficulties and the British government had to raise 1,5 billion in support in order to prevent bankruptcy. Worst attack on a British company in history.

Some Critical Cyber Attacks of the Recent Past.

- **July 2026:**

– Hackers used autonomous AI agents to attack Taiwan. Over four days in July, the AI agents were able to map 21 government systems, crack 85 government user accounts, and extract 2,500 personnel records.

– The hackers' system was built using open-source AI agents to automate and coordinate much of the intrusion, including reconnaissance, credential attacks and strategizing subsequent attack paths.

– First known fully autonomous attack on government agencies.

The 21st century will be the age of "Cybergeddon":

–Attacks on critical infrastructure, industry, governance systems, banks.
–Systematic stealing of Intellectual Property Rights.
–Information warfare (10 million fake news on facebook each day in USA).
–Cyber terrorism and actual cyber warfare.
–Artificial intelligence transforms cyber attacks by lowering technical barriers and automating reconnaissance.

Institutions and Governance of the EU:
The Law Making Process.

- **The EU is based on a series of treaties setting broad policy goals, which give legal power to Community institutions.**
- Community legislation directly affects all Member States and their inhabitants and is superior to national law.
- National courts are required to enforce the treaties that their Member States have ratified, and thus the laws enacted under them.
- For Decision Making the superior guideline is the Subsidiarity Principle:
  - In principle decisions must be made at the lowest possible institutional level, wherever possible on the level of the Member States.
- EU legislation must have an added value compared to national legislation.
- **The main legislative acts of the EU are Regulations, Directives and Decisions.**
  - They are all of equal legal value.

- **Regulations: ca 10.000 regulations active.**

- A regulation shall have general application.
- It shall be binding in its entirety and directly applicable in all Member States, thus becomes law in all member states the moment they come into force, without the requirement for any implementing measures, and automatically override conflicting domestic provisions.
- ***Examples for a regulation:***

➢ Regulation (EEC) No 1612/68 on freedom of movement for workers within the Community.

➢ Regulation (EC) No 261/2004 on Flight Delay Compensations.

➢ Regulation (EC) No 1907/2006 on the Registration, Evaluation, Authorisation and Restriction of Chemicals (REACH).

- **Directives: ca. 1.500 directives active.**

- A directive shall be binding, as to the result to be achieved, upon each Member State to which it is addressed, but shall leave to the national authorities the choice of form and methods.
- Requires member states to achieve a certain result while leaving them discretion as to how to achieve the result.
- The details of how they are to be implemented are left to member states.

- ***Example for a directive:***

  ➢ Directive 2000/60/EC on the Management of the European Water Resources (Water Framework Directive)

  ➢ Directive 2009/28/EC on Renewable Energy

  ➢ Directive 2012/27/EU on Energy Efficiency

- **Decisions: ca 700 decisions enacted every year.**

- A decision shall be binding in its entirety upon those to whom it is addressed.

- They are legal acts which only apply to specified individuals or companies.

- They are most often used in Competition Law, or on rulings on State Aid, but are also frequently used for procedural or administrative matters within the institutions.

- ***Example for a decision:***

- Commission Decision 2000/57/EC on the early warning and response system for the prevention and control of communicable diseases.

- Council Decision (CFSP) 2024/1484 concerning restrictive measures in view of the situation in Russia (enacting sanctions against Russia after military attack on the Ukraine).

- **Recommendations, opinions, resolutions and declarations:**

- Have no binding force.

- ***Examples:***

➢ Council Recommendation of 2 December 2002 on the prevention of smoking and on initiatives to improve tobacco control.

- **Council Conclusions, Common Positions and Joint Actions:**

– Tools to enact measures to be carried out by the Commission or MS.

- **Examples:**

➢ Council Conclusions on Bovine/Transmissible Spongiform Encephalopathies (BSE/TSE).

➢ Common position relating to the Convention on the prohibition of the development, production and stockpiling of bacteriological (biological) and toxin weapons and on their destruction (BTWC).

➢ Joint Action on anti-personnel landmines.

EU law (EUR-Lex) Search for directives, regulations, decisions, international agreements and other acts.

Institutions and Governance of the EU:
The Law Making Process

Citizens, interests groups, experts: discuss, consult on initial ideas of Commission.

Commission: makes formal proposal.

Parliament and Council of Ministers decide jointly.

National or local authorities: implement.

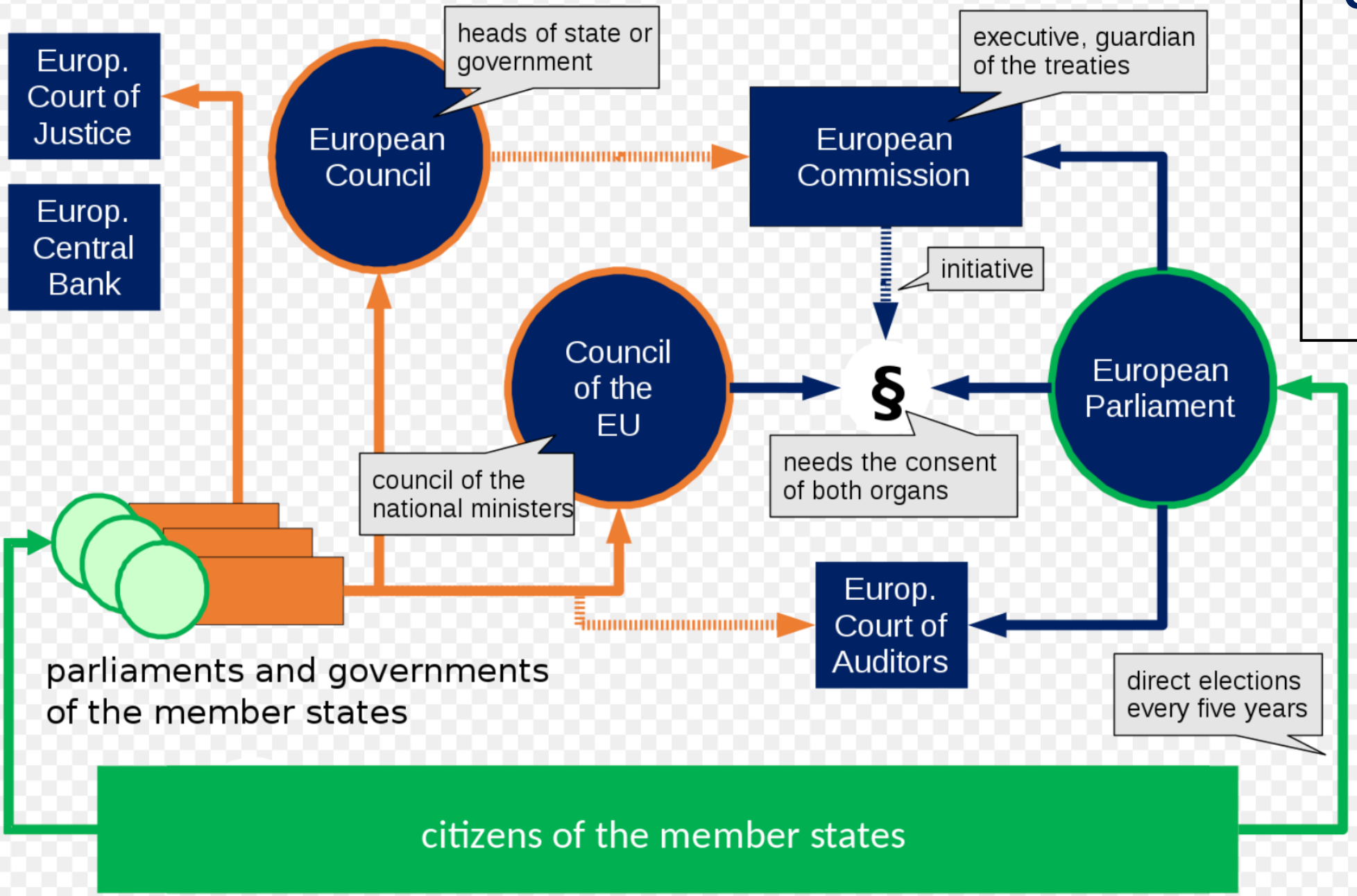
Commission and Court of Justice: monitor implementation.

The "Community Method"

- Commission has the right of initiative which makes it the motor of European Union law making and integration.
- Commission has no decision power.
- *„All the Commission can do is make good proposals!"*
- Decision power exclusively with Council and Parliament.

Source: European Commission

Organigram of the Political System of the EU.



The seven institutions of the Union are in blue.

National/inter-governmental elements are in orange.

A Citizens' Europe ?

- **Jean Monnet said in 1952:**
  „ We are not bringing together states, we are uniting people.'
- But the idea of a 'citizens' Europe' is still unfamiliar to most people.
- **The symbols -** represent a shared European identity:

– the European passport (in use since 1985). Every person holding the nationality of a Member State is also a citizen of the Union.
– the European anthem (Beethoven's 'Ode to Joy'), and
– the European flag (a circle of 12 gold stars on a blue background).
– The EU has adopted a motto, 'United in diversity'.
– 9 May has been made 'Europe Day' (Schumann Day).

- **Who knows that we are also European citizens (consequences abroad)?**
- **How many people know Schumann Day?**
  Initiatives to replace the national holidays by a common European holiday or to add it to the holidays in Europe failed up to now.

A Citizens' Europe ?

- **The EU Charter of Fundamental Rights:**
- Introduced by the Lisbon Treaty in 2009.
- Charter has the same legal value as the European Union Treaties.
- Its 54 articles set out the European Union's fundamental values and the civil, political, economic and social rights of EU citizens.
- The opening articles cover human dignity, the right to life, the right to the 'integrity of the person' and the right to freedom of expression and of conscience.
- The chapter on solidarity brings together, in an innovative way, social and economic rights such as:
  - the right to strike;
  - the right of workers to be informed and consulted;
  - the right to reconcile family life and professional life;
  - the right to healthcare, (basic) social security and social assistance throughout the European Union.
- **But: massive interpretation differences, plenty of disputed issues (particularly in the decisions of the European Court of Human Rights).**

A Citizens' Europe ?

- **A widespread opinion of EU citizens:**

„There is a tendency for eccessive bureaucracy in the European Union."



- **Straight bananas ?**

- Does the EU want to impose straight bananas on consumers ?
- Commission Regulation Number 2257/94 details the regulations covering the quality standards for bananas, including the requirement that they be at least 5.5 inches long and 1 inch wide.
- The regulation includes the provision that bananas of Class „Extra" be free from "abnormal curvature".

A Citizens' Europe ?



- **Straight cucumbers ?**

– Does European legislation lay down standards for the straightness of cucumbers ?

- Commission Regulation (EEC) No. 1677/88 of 15 June 1988 states (article 2B) that 'Extra' and Class 1 cucumbers must "be well shaped and practically straight (maximum height of the arc: 10 mm per 10 cm of length of cucumber)".
- In 2008 the Commission proposed to withdraw this piece of legislation.
- The European Council of Agricultural Ministers rejected this proposal however.
- But in 2009 this regulation was repealed.

Montesquieu (French Philosopher, 1689-1755):
'Les lois inutiles affaiblissent les lois nécessaires'.
['Useless laws weaken the necessary ones'.]

Source: European Commission

A Citizens' Europe ?

- **Insects in Food?**
  - Insects classified as "Novel Food" in Directive 2283/2015.
  - Directive 2023/5 allows the addition of dried insect powder to pasta, pizza, noodles, chips, snacks, meat substitute products etc.
  - Content up to 10%. Normal listing as food additives, no warning.
  - Argument: insects contain much proteins, omega 3- and 6- fatty acids, trace elements, K and P.
  - Insects: grashoppers (locusta), crickets (grylloidea, acheta), mealworms (tenebrio), 14 more in the pipeline.

Source: European Commission, GEO 2023



Servus TV 27.01.2023





A Citizens' Europe ?

The Policy Framework for the European Union

The Lisbon Agenda

Economic Growth

Social Equilibrium

Environmental Quality

Sustainable Development is the Guiding Principle for the European Union.

The EU is a Pioneer in Sustainable Development.

The EU tries to implement this principle at every international activity.

A Transparent Union at Your Service.



Source: European Commission

European Union Media Policy.

- The vast majority of media in the European Union are national-oriented.
- However, some EU-wide media focusing on European affairs have emerged since the early 1990s:



Euronews headquarters Lyon

- Euronews, EUobserver, EURACTIV, Politico or ARTE.

– Euronews is a tv-news channel similar to CNN, but much smaller.

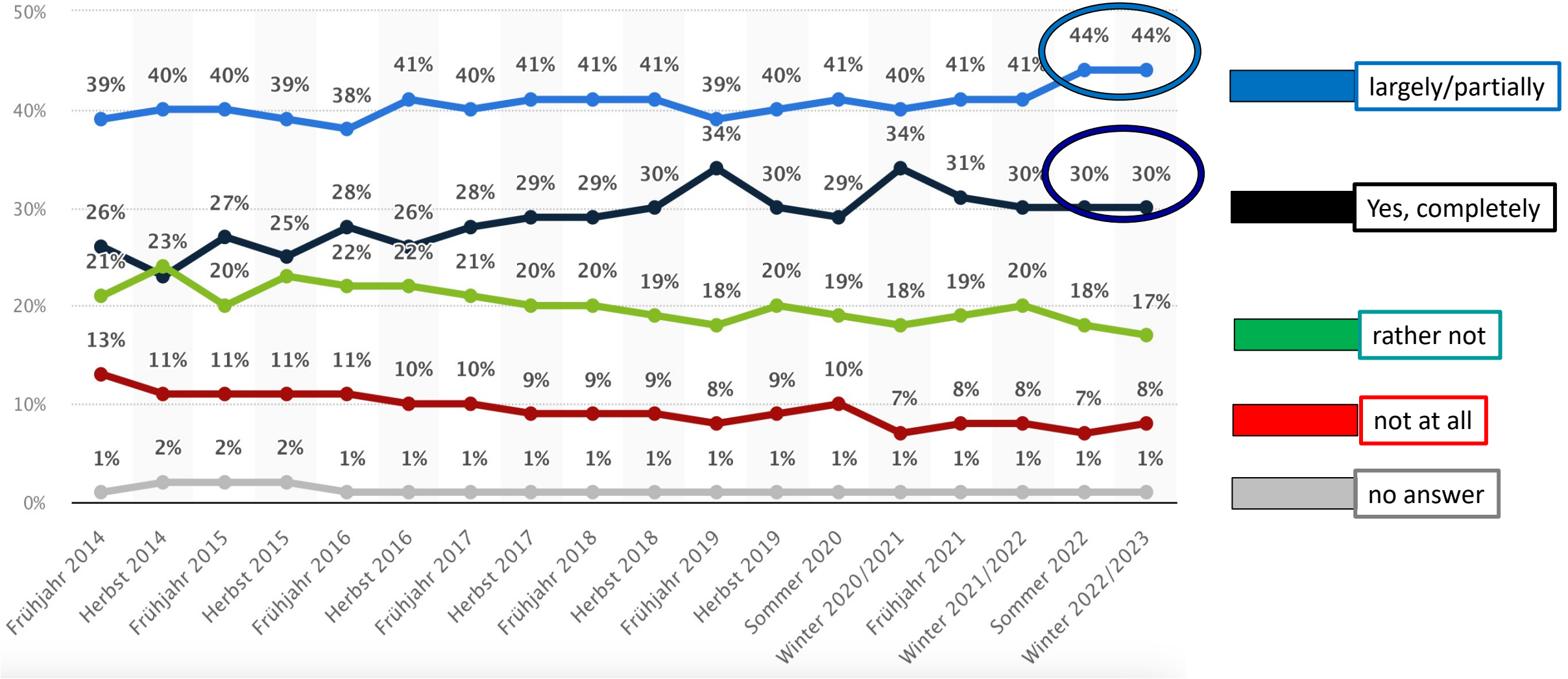
– Politico is an excellent news magazine for decision makers.

– ARTE is a public Franco-German TV network that promotes programming in the areas of culture and the arts.

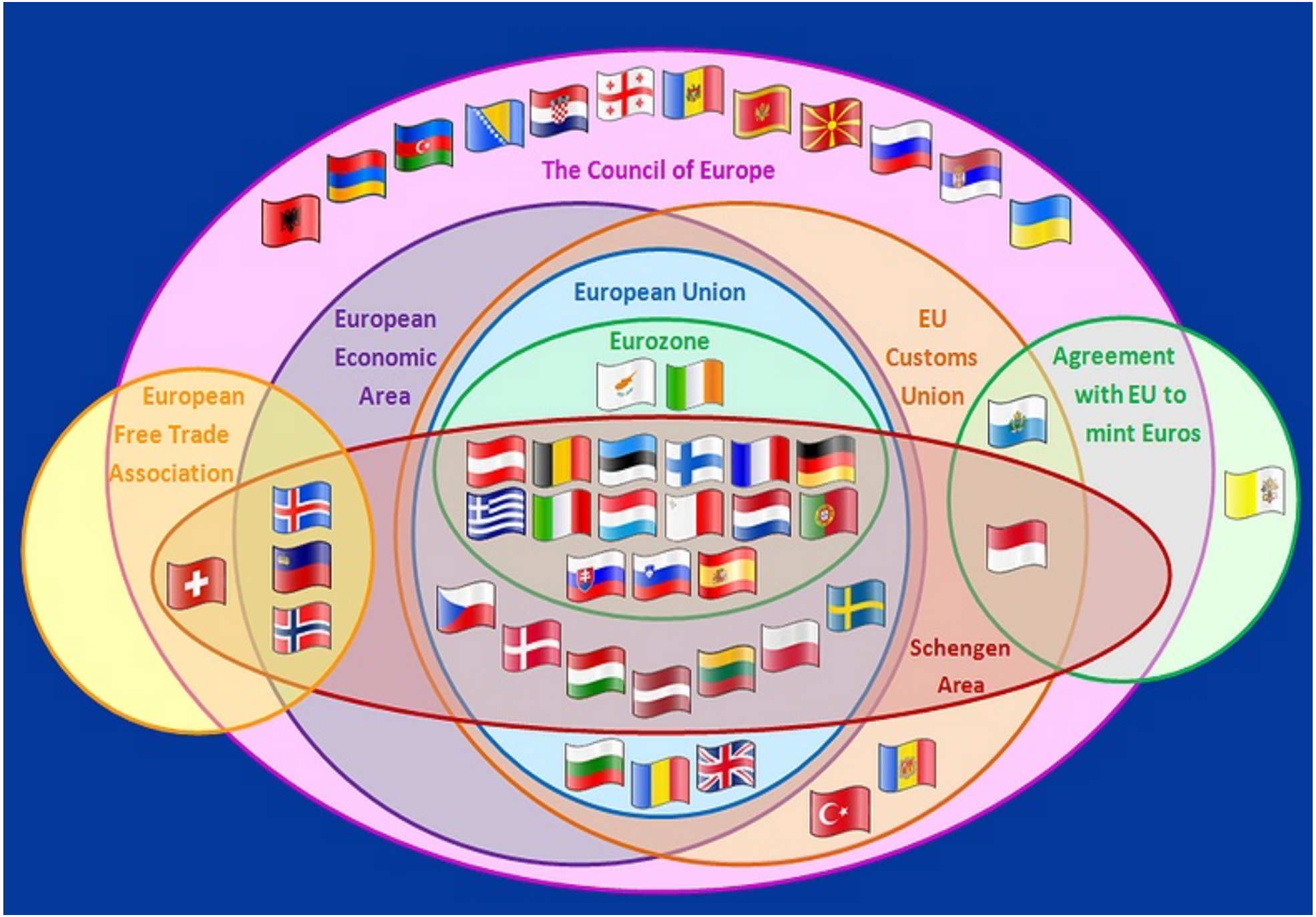
Source:
European Commission

EUROBAROMETER 2014 - 2023:
Do you feel to be a citizen of the European Union?

3 out of 4 EU citizens see the European Union positive.



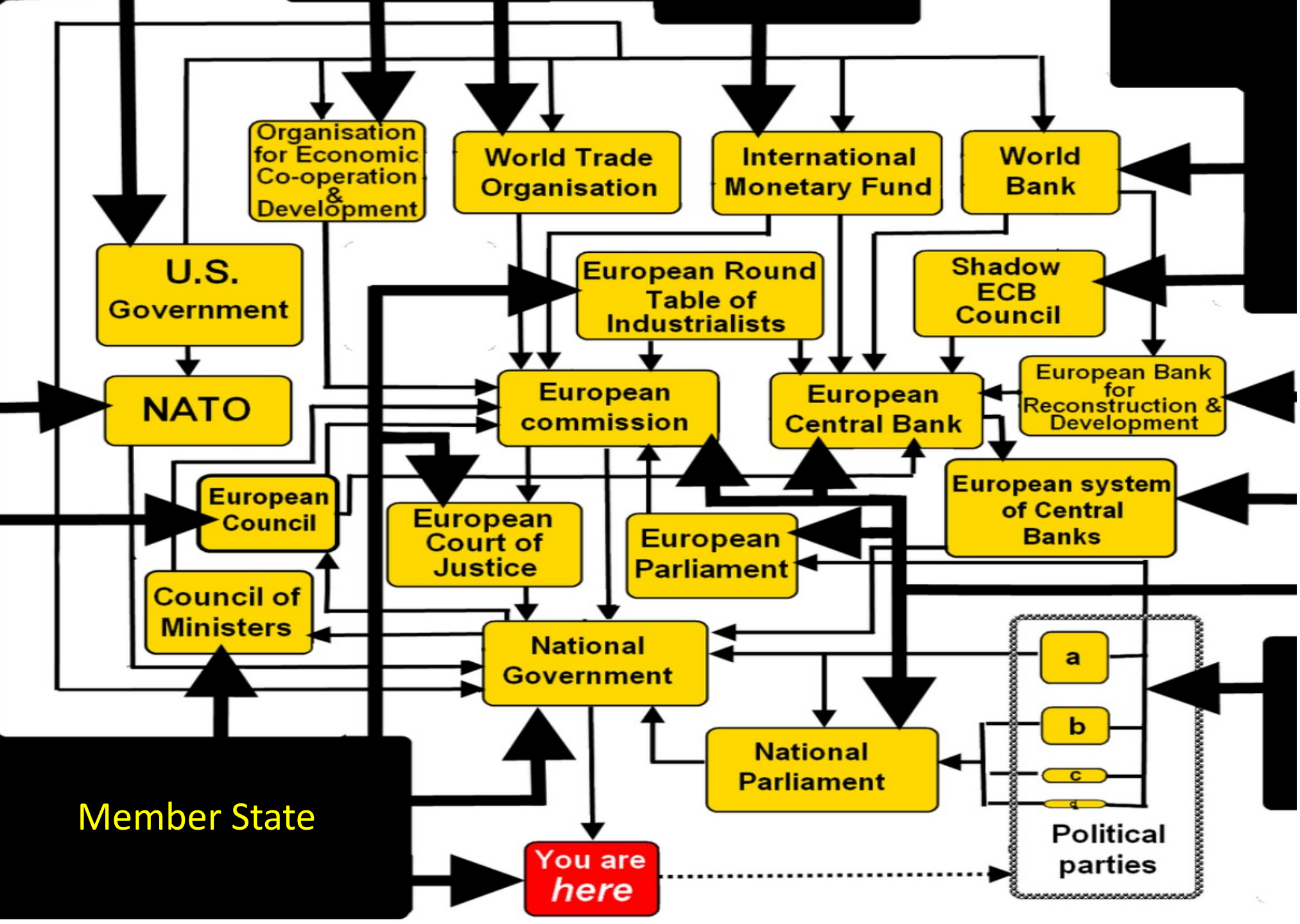
Source: European Commission 2023



The Jungle of European Political Organisations.

Plus:
European Inter-Governmental Organisations (ESA, ECMWF, OECD, OSCE).

The EU Citizen in a Complex World of Institutions.



Source:
Wessex Solidarity